

24STCV16797 24STCV16797

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 3, 2026

CASE NUMBER

25STCV16797

MOTION

Motion to Compel Further Discovery Responses

MOVING PARTY

Plaintiff Sithirak

Yin

OPPOSING PARTY

Defendant the Boeing Company

MOTION

Plaintiff Sithirak

Yin ("Plaintiff") moves to compel further responses from Defendant the Boeing Company ("Defendant") to Requests for Production of Documents, set one, No. 94 ("RPD").

ANALYSIS

If the propounding party deems responses to requests for production of documents unsatisfactory, the propounding party may move to compel further responses. (Code Civ. Proc., § 2031.310.)

This is

Plaintiff's second motion to compel further responses with respect to the RPD. In its January 20, 2026 order, the Court ordered Defendant to serve a further response to the RPD. (January 20, 2026 Minute Order.) Plaintiff moves to compel a further response to Defendant's supplemental response. In response to the RPD, Defendant withheld certain documents which concern its investigation of Plaintiff while asserting the attorney-client privilege and attorney work product doctrine. Defendant describes these documents as "related communications . . . withheld on the basis of attorney client privilege given that defense counsel and [Defendant] had communications regarding the investigation" (Opposition to Motion to Compel, p. 3.)

When an employer

injects the issue of the adequacy of its investigation of an employee into a lawsuit, and the employer engages an attorney or law firm to conduct that investigation, the lawyer waives the attorney-client privilege and attorney work product protection with respect to that investigation. (Wellpoint Health Networks v. Superior Court (1997) 59 Cal.App.4th 110, 128.) In the instant matter, Defendant contends it investigated Plaintiff and the investigation justified terminating Plaintiff because "Plaintiff failed to comply with Defendant[s] policies and practices." (Answer to Plaintiff's First Amended Complaint, pp. 2-3.) As such, Defendant injected its investigation into this litigation. Because Defendant "involved defense counsel at various stages of the investigation . . . ," Defendant has waived the privilege with respect to responsive documents which pertain to Plaintiff. (Opposition to Motion to Compel, p. 7.) Defendant must produce the withheld documents.

Defendant also

withheld documents from investigations related to complaints other employees made. The Court will not order Defendant to reveal the identities of its other employees without providing the employees with notice and an opportunity to opt out of the disclosure of their identities and contact information, under *Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 554. Therefore, the parties are to meet and confer regarding the notice procedure to be implemented with respect to the other employees.

The Court denies

the motion to compel Defendant to reproduce the documents it has already produced. The RPD does not specify the form in which Defendant must produce responsive information. As such, Defendant was not required to produce documents in a certain format. (Code Civ. Proc., § 2031.280, subd. (c).) The Court cannot reach Plaintiff's argument Defendant should not have produced redacted documents, as the redacted documents Defendant produced are not before the Court. The Court cannot consider the propriety of any redactions the Court has not reviewed.

To the extent

Plaintiff moves to compel further responses because Defendant asserted objections to the RPD, the motion is denied.

Defendant responded to the RPD after objecting, "leaving nothing to address in a motion to compel." (*American Federation of State, County & Municipal Employees v. Metropolitan Water Dist.* (2005) 126 Cal.App.4th 247, 269.) Because Defendant responded to the RPD, the Court cannot compel a further response on the basis Defendant also asserted objections.

The Court declines

to impose sanctions against Defendant. The Court finds Defendant asserted the privacy rights of its employees in good faith. Likewise, the motion lacks merit as to Plaintiff's argument Defendant must re-produce documents it already produced. As such, the Court concludes an award of sanctions against either side would be unjust. (Code Civ. Proc., § 2031.310, subd. (h).)

Plaintiff is

ordered to give notice of the Court's ruling and to file proof of service of same.